

CHAPTER - 3

ELEMENTS OF CRIMINAL LIABILITY

There are two essential elements to establish penal liabilities:

- (a) Actus reus and
- (b) Mens rea

Actus reus is the physical aspect of the crime where as mens rea is the mental element involved in a crime.

ACTUS REUS

Actus reus is the physical result of conduct and defined as "such result of human conduct as the law seeks to prevent".

The term Actus reus derived from words, "Actus" meaning human conduct and "reus" meaning forbidden by law connotes, doing of an act which is legally prohibited.

Actus reus is the result of conduct and not the conduct itself which produced the result.

For example: In a case of murder, it is the death of the person which is Actus reus, and not the physical act of killing. Requirements of Actus reus

Actus reus has three requirements:

1. Human action/conduct:
 - (a) Conduct should be voluntary: e.g., shooting done by an epileptic person under a fit of epilepsy, resulting in the death of a person is not a crime as it was done involuntarily.
 - (b) The conduct can be one of commission or of omission: commission can be any actual physical causative act. For e.g.: shooting, striking, etc. Omission can be the refraining of the accused from doing a certain thing/act (which he is bound to do by law) knowing that this would cause injury to someone. E.g.:
 - (i) A jailor, who does not provide food to his prisoners and some of them are starved to death, commits a crime.
 - (ii) A railway-crossing gatekeeper who does not close the gate and collision takes place, he is held guilty of negligence.
 - (c) The Act is not limited: rather, there can be a series of acts. Section 33, I.P.C, explains this, e.g., in a case of murder by shooting, the various acts, such as

purchasing the gun, purchasing the cartridge, loading the gun, aiming, pulling the trigger... etc. together constitute the act.

2. The result of the act (under the given circumstances), generally called an injury Crime is constituted by the event/result and not by the activity itself. E.g., X shoots at Y, intending to kill him but Y is not killed. The accused will not be charged of murder; rather he will be charged of attempt to murder. The question 'how' is important only for fixing the criminal liability.
3. Forbidden bylaw: e.g. X kills Y, but X is a hangman. His killing of Y is not forbidden by law; hence, he has not committed a crime here. Omission can be put into two groups, viz, (1) those forbidden by law (jailor/gatekeeper examples), (2) and those not forbidden by law e.g. a gold medalist swimmer sees a child drowning but doesn't rescue, the child dies, here the person doesn't commit a crime as his omission was not forbidden by law.

MENS REA

Mens rea is the second essential ingredient in crime. The term Mens rea derived from words, "mens" meaning mental element and "rea" meaning forbidden by law connotes the mental or psychological element involved in an act prohibited by law.

It is generally referred to as "guilty mind or evil intention". Granville Williams defines mens rea as follows: "Mens rea refers to the mental element necessary for the particular crime and this mental element may be either intention to do the immediate act or being about the consequence or recklessness as to such act or consequence".

Mens rea is thus, the attitude of mind which actuates the conduct which results in Actus reus.

Significance of mens rea

Significance of the concept of mens rea is that no act is per se criminal unless it has a guilty mind behind it.

Tips as to infer mens rea from evidences:

1. Act should be voluntary: E.g. some dacoits put a pistol on a blacksmith's temple and force him to break open the lock of a godown here the blacksmith is not guilty as he has done the act involuntarily. However, if he also had some intension of stealing things from the godown he would be held guilty.
2. Foresight/knowledge: If the knowledge is missing, the intension is missing, then there shall be no crime E.g. A shoots a tiger (in a jungle) but tiger escapes and B who was behind the bush is hit and is killed, as A did not have the knowledge of B's presence behind the bush, he did not intend to kill him and hence, no crime committed. However had the event occurred in a residential area or a park etc. the case would have been different in that case he would be presumed of knowing the co-incidental presence of someone.

Mens rea has not been defined in the IPC anywhere. However while defining the crimes, the court has incorporated the requirement of mens rea.

These two essential ingredients of a crime are generally inseparable, e.g. (1) when a child or insane person abuses one he is likely to get amused instead of retaliating, intentionally. Whereas when a same man does a same, one tends to reciprocate. Knowing that it was intentionally done. (2)

A person under the influence of somnambulism crushes the eye of a person lying by the door. Yet, he cannot be prosecuted as he has done this unintentionally.

This is explained by the maxim "actus non-facit reum, nisi mens sit rea", which means "the intent and the act must both concur to constitute the crime".

This means that the two elements individually and separately cannot establish criminal liability.

There has to be a concurrence of both at the same time and same place, to constitute a crime, e.g. if

A intends to kill B, but never commits any act towards fulfilment of his desire, no matter, how evil intentions he might have, he cannot be held criminally liable.

Similarly, if A innocently and by mistake hurts B without any intention or knowledge he cannot be held liable for hurt.

Furthermore, if A had an intention to cause injury to B, but does not commit any act towards fulfilment of his desire at that time, and later on after a gap of long time, without any evil intention if he slaps B, he can't be held liable for culpable injury.

Similar, would be position in case an act is done long before an evil intention of causing such an act comes to the mind. Hence, it stands clear, that generally Actus reus and mens rea has to concur, to cause a crime.

There are certain exceptions to this general rule. For e.g. in case of strict liability and absolute liability or statutory offences, the requirement of mens rea is strictly done away with.

These are exceptions to the general rule of common law and natural justice, which requires that mens rea has to be established to prove the culpability of an act i.e. "there must be a mind at fault before there can be a crime".

The different degree and intensity of mens rea is represented as: intention, recklessness, knowledge, negligence, rashness, voluntarily etc.

- (i) **Intention:** It indicates the mind of a man who desires the possible consequences of his conduct and also foresees such consequences i.e. such a mind has fixed purpose to produce a particular result e.g. if A shoots B with a pistol from an arms distance at his forehead, he not only intends but also foresees the possible consequences or the result of its conduct with certainty.

Intention is attributed the highest degree of mens rea, since the probability of the consequences of the conduct occurring is highest and the possibility of consequences desired is almost certain and hence intention is required in establishing the culpability of highly aggravated form of offences e.g. to establish murder under Section 300, intention has to be established.

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- (ii) **Recklessness:** It is the state of mind where one is aware of the consequences of his act but remains indifferent to the consequences of his conduct.

Eve J. describes recklessness, as "it is an attitude of a mental indifference to obvious risks" e.g. a man firing crackers in a crowded mela and thus injuring some people without the intention of causing injury is nonetheless reckless as he was aware of the consequences of his conduct but remaining indifferent to the risk. A reckless person does not intend the consequences but can foresee the possibility and consciously takes the risk but unlike intention the consequence is not intended and the consequences foreseen are only probable and not certain. Recklessness is although a degree lower to intention but for all legal purpose recklessness is classed with intention, the foresight of the consequence being the factor, which group them together.

Caldwell (1981) All ER 961 House of Lords

- (iii) **Negligence:** It is the state of mind which does not desire a particular consequence but remains indifferent and careless to the risk involved, such a risk is not foreseen. In negligence there is a lack of care and caution which a reasonable person must take to avoid such risk e.g. if A throws a stone out of his window in the street, he might not intend to hurt anyone but never the less it might injure a passer-by, here A is negligent. Negligence is blameworthy inadvertence, which means an unintentional failure to conform to the conduct of the reasonable man in respect of the consequence in question, and it involves both a subjective and objective inquiry.

Negligence is a lower degree of mens rea where the possibility of the risk involved, taking place is less.

- (iv) **Knowledge:** It is the state of mental realisation and it refers to the conscious awareness of facts which are the personal information of the person doing the act. Knowledge is of higher degree than negligence and rashness, here the foreseeability of the consequence is low, and the mind is witness to the physical act of the body and thus the culpability lies in the failure of the mind from stopping the crime to be performed.

Tests for mens rea

The prosecution must establish the following in order to establish the mens rea:

- (i) The accused's conduct brought about or contributed in a substantial degree to the consequences which amount to the Actus reus.
- (ii) Conduct was voluntary.

- (iii) At the time he was so conducting himself he realised that he would or might bring about consequences of that kind.

Motive: It is an attitude of mind i.e. the emotion prompting the act. Motive is irrelevant to the concept of mens rea.

Objective Standard of mens rea:

Rule: A person always intends the natural consequences of his act.

Mens rea being mental element cannot be ascertained physically, thus, mens rea is ascertained by an objective standard of a reasonable man, placed in similar Situation.

The objective standard is supported by the legal presumption that a man is always deemed to have intended the natural consequences of his acts. For example: If X hits Y with an iron rod on Y's head, repeatedly, and causes Y's death, he shall be presumed to have intended that death will be the consequence of his act, and he shall not be allowed to contend, that he just intended to cause minor injury.

Director of Public Prosecution vs. Smith, 1960 All ER 161

In this case, the Accused Stole a car, and was chased by a police officer, who hung by the car, the accused drove the car rashly and the police officer was grievously injured and consequently died.

The court, asked, whether he could, as a reasonable man, contemplate that grievous injury would follow, if yes, he would be liable for the death, because every person intends the natural and probable consequences of his acts.

The House of Lords approved this rule.

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This principle was affirmed in the Public Prosecution vs. Smith case

In R vs. Lumley (1911): Avery J. also enunciated the same principle. This test of reasonable standard was modified in England by Section-8 of criminal Justice Act, 1967, which provides:

"A court or jury in determining whether a person has committed an offence,

- (a) shall not be bound in law to infer, that he intended or foresaw a result of his actions by reason only of its being a natural and probable consequence of those actions, but,
- (b) shall decide whether he intend or foresee that result by reference to all the evidence drawing such references from the evidence as appear proper in the circumstances."

Section was applied to decide the cases of:

In R vs. Lipman 1969 WCR, where the court held that the intention to create a dangerous situation which results in death, even if the latter was not intended or even anticipated is sufficient in manslaughter.

In R vs. Mrs. Hyam (1979), the court held that knowledge or foresight of the probable result is sufficient to constitute criminal intention, whatever the motive or desire. the corpus delicti which actually ensues. This inference arises irrespective of the particular consequence which ensured being or not being foreseen by the criminal and whether his conduct is reckless or reverse."

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